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Case Number: 23STCV28732 Hearing Date: June 26, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

26, 2026 TRIAL DATE: October 5, 2026

CASE: Casetta Signater

v. Keppel Union School District

CASE NO.: 23STCV28732

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION FOR SUMMARY JUDGMENT, OR IN THE
ALTERNATIVE, MOTION FOR SUMMARY ADJUDICATION OF ISSUES

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO STRIKE, OR IN THE ALTERNATIVE,
DISREGARD, PLAINTIFF CASETTA SIGNATER'S SUPPLEMENTAL STATEMENT OF ADDITIONAL
FACTS, SUPPLEMENTAL EXHIBITS, OPPOSITION TO DEFENDANT'S OBJECTIONS TO EVIDENCE,
CONSOLIDATED DECLARATION OF DARRYL LUCIEN, AND CONSOLIDATED SECOND NOTICE OF ERRATA

PLAINTIFF

CASETTA SIGNATER'S MOTION FOR RELIEF FROM WAIVER OF JURY TRIAL PURSUANT TO CODE
OF CIVIL PROCEDURE § 631(g)

In May 2022, plaintiff Casetta Signater ("Signater"
or "Plaintiff"), an African American woman, was employed as a Program

Specialist by defendant Keppel Union District School ("District" or "Defendant"). In July 2022, the District offered Signater the position of Principal at Daisey Gibson Elementary School. Signater accepted the position. At the time of the offer, the District knew Signater needed to renew her Administrative Services credential and agreed to help facilitate a credential waiver with the California CTC on Teacher Credentialing (the "CTC"). However, after Signater made a complaint that she was subject to racial discrimination and harassment, Signater alleges the District stopped assisting in the waiver process. Signater did not obtain the waiver, her credential expired, and the District thereafter placed her on administrative leave and elected to terminate her employment due to Plaintiff's failure to satisfy her math Basic Skills Requirement.

Before

the court are three motions: (1) Defendant's motion for summary judgment, or in the alternative, motion for summary adjudication of issues; (2) Defendant's motion to strike various filings by Plaintiff in support of her opposition to Defendant's motion for summary judgment; and (3) Plaintiff's motion for relief from waiver of jury trial pursuant to Code of Civil Procedure section 631(g). The court begins by addressing together Defendant's motion for summary judgment and motion to strike.

I. DISCUSSION

RE MOTIONS TO STRIKE & FOR SUMMARY JUDGMENT

A. Background

On November 22, 2023, Plaintiff commenced this action against Defendant.

On April 10, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendant alleging causes of action for (1) race discrimination in violation of FEHA; (2) race retaliation in violation of FEHA; (3) failure to prevent discrimination/retaliation in violation of FEHA, and (4) violation of Labor Code section 1102.5(b).

Motion for Summary Judgment

On March 16, 2026, Defendant filed this motion for summary, or in the alternative summary adjudication of issues (the "MSJ").

On May 22, 2026, Plaintiff filed an opposition and separate statement.

On May 26, 2026, Plaintiff filed evidentiary objections to Defendant's evidence.

On May 29, 2026, Plaintiff filed her exhibit list.[1]

On June 1, 2026, Defendant filed a reply, evidentiary objections to Plaintiff's separate statement, and responses to Plaintiff's evidentiary objections, and separate statement of additional facts.

On June 5, 2026, Plaintiff filed a consolidated second notice of errata re opposition to the MSJ, a consolidated declaration of Darryl M. Lucien in support of Plaintiff's opposition, response to Defendant's evidentiary objections, and a supplemental separate statement (the "June 5 Filings").

On the same day, Defendant filed an objection to the June 5 Filings.

On June 8, 2026, Plaintiff filed a second exhibit list in support of her opposition (the "June 8 Filing").[2]

Motion to Strike

On June 8, 2026, Defendant filed a motion to strike Plaintiff's June 5 Filings.

The motion was scheduled for hearing on August 13, 2026. On the same day, Defendant filed an ex parte application to have the motion to strike to be heard on the same day as the MSJ.

On June 9, 2026, the court granted the ex parte application and set the hearing for June 26, 2026.

On June 15, 2026, Plaintiff filed an opposition.[3]

On June 17, 2026, Defendant filed a

reply. Defendant also seeks to strike Plaintiff's June 8 Filing.

B. Motion to Strike

Defendant moves to strike Plaintiff's June 5 Filings or, alternatively, for the court to disregard the June 5 Filings when considering the MSJ. In reply, Defendant also moves to strike Plaintiff's June 8 Filing. The June 5 Filings consist of a supplemental separate statement, supplemental exhibits, response to Defendant's objections to Plaintiff's evidence, a consolidated declaration of Darryl Lucien, and consolidated notice of errata. The June 8 Filing consists of new evidence. Defendant's argument is straightforward: the June 5 Filings and June 8 Filing are a sur-reply which Plaintiff filed without obtaining leave of court. For this reason, the June 5 Filings and June 8 Filing should be stricken or disregarded.

With the exception of a portion of the supplemental exhibits, the motion is meritorious. "An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c(b)(2); see also Cal. Rules of Court, rule 3.1354(a).) Here, the June 5 Filings contain new argument and evidence (deposition testimony from Defendant's and CTC's persons most knowledgeable (PMK)). The June 8 Filing also contains new evidence. Critically, Plaintiff has not requested a court order permitting these filings after the statutory deadline. Plaintiff's late filings plainly run afoul of the summary judgment statute.

In opposition, Plaintiff argues the motion should be denied for eight reasons. None are availing.

First, Plaintiff argues the court has broad discretion to consider Plaintiff's supplemental opposition papers under California Rules of Court, rule 3.1300(d) and binding Supreme Court authority. (See Opp., p. 1:3-7.) The court may have discretion to consider the June 5 Filings, but Plaintiff does not provide a good reason for the court to

exercise that discretion here.

Second, Defendant cannot show prejudice because Defendant delayed the PMK depositions and resulting testimony upon which Plaintiff now relies. The argument misstates the inquiry. If additional evidence exists and is necessary to oppose a motion for summary judgment but has not yet been obtained, Plaintiff should have supplied the necessary facts to obtain a continuance. "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (Code Civ Proc., § 437c(h).) Here, Plaintiff simply filed documents without leave of court. Plaintiff did not request a continuance to obtain necessary evidence.

Third, Plaintiff complains CTC's PMK deposition was delayed to the date Plaintiff's deposition and thus, could not have been presented here. The court rejects this argument for the same reasons as Plaintiff's second argument: Plaintiff fails to explain the relevance of CTC's PMK deposition to oppose the MSJ and moreover, did not request a continuance.

Fourth, Plaintiff points out that Defendant relied on PMK deposition testimony in support of its reply. Plaintiff is incorrect. Defendant's reply papers made one reference to the deposition of Tangie Schatz. (See Defendants' Reply ISO MSJ, pp. 5:26-6:1.) Defendant did not cite Ms. Schatz's testimony nor did it submit any testimony given by Ms. Schatz as evidence in support of its reply.

Fifth, Plaintiff argues the supplemental evidence bears directly on her Labor Code section 1102.5 claim. But again, if Plaintiff believed additional evidence was unavailable but necessary to oppose the MSJ, Plaintiff should have apprised the court and sought a continuance.

Sixth,

Plaintiff argues CTC's PMK testimony is directly contradicts Defendant's articulated reason for placing Plaintiff on unpaid leave on January 5, 2023.

The court repeats once more: Plaintiff should have apprised the court and sought a continuance.[4]

Seventh,

Plaintiff argues the Notice of Errata is a routine correction of citation errors in evidence already in the record.

The court disagrees. The Notice of Errata goes beyond making simple corrections. With the exception of evidence Plaintiff identified in its initial exhibit list but failed to provide to the court, the Notice of Errata plainly seeks to add new evidence. This is improper for the reasons discussed ad nauseum.

Last,

Plaintiff complains that the motion to strike should be denied because Defendant did not file the moving papers.

This is demonstrably false. The motion to strike was filed on June 8, 2026.

Based

on the foregoing, the motion to strike is GRANTED IN PART. With the exception of the exhibits identified in Plaintiff's exhibit list filed late on May 29, 2026, the court disregards Plaintiff's June 5 Filings and June 8 Filing.

C. Motion for Summary Judgment

1. Evidentiary Objections

a. Plaintiff's Evidentiary Objections

Plaintiff asserts ten objections to the declaration of Elizabeth Huerta (Obj. Nos. 1-10) and five objections to the declaration of Priya Darshini Darbari (Obj. Nos. 11-15).

Plaintiff's objections are OVERRULED.

b. Defendant's Evidentiary

Objections, filed June 1, 2026

Defendant asserts five objections to portions of Plaintiff's Exhibit 55 (Obj. Nos. 1-5), seventeen objections to portions of Plaintiff's Exhibit 52 (Obj. Nos. 6-22), two objections to Plaintiff's Exhibit 54 (Obj. Nos. 23-24), two objections to portions of Plaintiff's Exhibit 56 (Obj. Nos. 25-26), and objections to the entirety of Plaintiff's Exhibit 70, Exhibit 2, Exhibit 5, Exhibit 6, Exhibit 7, Exhibit 24, Exhibit 28, Exhibit 29, Exhibit 31, Exhibit 32, Exhibit 36, Exhibit 40, Exhibit 42, Exhibit 44, Exhibit 49, Exhibit 64, Exhibit 65, Exhibit 66, Exhibit 68, Exhibit 69, Exhibit 71, Exhibit 9, Exhibit 10, Exhibit 11, Exhibit 12, , Exhibit 13, Exhibit 14, Exhibit 16, Exhibit 17, Exhibit 19, Exhibit 21, Exhibit 22, Exhibit 23, Exhibit 24, Exhibit 50, Exhibit 26, Exhibit 27, Exhibit 30, Exhibit 33, Exhibit 34, Exhibit 35, Exhibit 37, Exhibit 38, Exhibit 39, Exhibit 41, Exhibit 43 (Obj. Nos. 27-73).

Because Plaintiff cured the omissions of evidence from her exhibit list and the failure of her counsel, Darryl Lucien, to sign his declaration, Defendant's objections are OVERRULED.

c. Defendant's

Evidentiary Objections, filed June 5, 2026

These objections are mooted by the court's ruling on Defendant's motion to strike.

2. Legal Standard

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."¿ (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c(c).)¿ A defendant reaches its burden on summary judgment by showing there is no triable issue on one or more element of each cause of action.¿ (Code Civ. Proc., § 437c(p)(1); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)¿ The burden will then shift to the plaintiff to show the existence of a triable issue of material fact.¿

(Code Civ. Proc., § 437c(p)(1).)¿

¿

Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”¿ (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)¿ However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law.¿¿ (Code Civ. Proc., § 437c(c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)¿¿

3. Application

a. Race

Discrimination (1st COA)

The FAC alleges that Defendant subjected Plaintiff to race discrimination by failing to cooperate in facilitating the required waivers for Plaintiff because of her race. (FAC, ¶¶ 13, 24.)

Claims for discrimination are subject to the McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792 (McDonnell Douglas) burden-shifting analysis. (Sandell v. Taylor-Listug, Inc. (2010) 188 Cal.App.4th 297.) “This framework is modified in the summary judgment context: The employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff’s prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors. If the employer meets its initial burden, the burden shifts to the employee to demonstrate a triable issue by producing substantial evidence that the employer’s stated reasons were untrue or pretextual, or that the employer acted with a discriminatory animus, such that a reasonable trier of fact could conclude that the employer engaged in intentional discrimination or other unlawful action.” (Ortiz v. Dameron Hosp. Assn. (2019) 37 Cal.App.5th 568, 577-78 (cleaned up).) “In responding to the employer’s showing of a legitimate reason for the complained-of action, the plaintiff cannot ‘simply show the employer’s decision was wrong, mistaken, or unwise. Rather, the employee must demonstrate such

weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder could rationally find them 'unworthy of credence,' and hence infer that the employer did not act for the [asserted] non-discriminatory reasons." (McRae v. Department of Corrections & Rehabilitation (2006) 142 Cal.App.4th 377, 389-390 (cleaned up).) "[A]n employer is entitled to summary judgment if, considering the employer's innocent explanation for its actions, the evidence as a whole is insufficient to permit a rational inference that the employer's actual motive was discriminatory." (Guz v. Bechtel National Inc. (2000) 24 Cal.4th 317, 361.)

i. Prima Facie Case ¿

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"To state a prima facie case of ... race ... discrimination under FEHA, a plaintiff must show that: (1) [s]he was a member of a protected class, (2) [s]he was qualified for the position [s]he sought or was performing competently in the position he held, (3) [s]he suffered an adverse employment action ... and (4) some other circumstance suggests discriminatory motive. Thus, a plaintiff must establish a causal nexus between the adverse employment action and his protected characteristic." (Martin v. Bd. of Trs. of California State Univ. (2023) 97 Cal.App.5th 149, 161–62 (cleaned up).)

Defendant argues Plaintiff cannot state a prima facie case of race discrimination because "not cooperating in facilitating required waivers" is not an adverse employment action. The argument lacks merit. Defendant advances an unduly narrow interpretation of "adverse employment action" limited to termination, demotion, suspension, failure to promote, decreased pay, or official disciplinary action. The standard is more expansive. "In the employment discrimination context, an adverse action is one that materially affects the terms, conditions, or privileges of employment based on the totality of the circumstances. It goes beyond so-called ultimate employment actions such as termination or demotion to cover the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement in his or her career." (Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640,

663 (citations and internal quotations omitted).) “Our Supreme Court has recognized that what constitutes an adverse employment action ‘is not, by its nature, susceptible to a mathematically precise test,’ and, as a result, ‘the significance of particular types of adverse actions must be evaluated by taking into account the legitimate interests of both the employer and the employee.’” (Brown v. Los Angeles Unified School Dist. (2021) 60 Cal.App.5th 1092, 1106 quoting Yanowitz, supra, 36 Cal.4th at p. 1054.) “The express purpose of FEHA is to provide effective remedies that will eliminate discriminatory practices in the workplace (§ 12920), and its provisions are to be construed broadly and liberally to accomplish that purpose. (Bailey v. San Francisco Dist. Attorney’s Office (2024) 16 Cal.5th 611, 626, internal quotations omitted.)

Here, Defendant’s alleged failure to cooperate in the credentialing process materially affected the conditions of Plaintiff’s employment. The failure to facilitate in the waiver process impaired Plaintiff’s opportunity to advance in her career. Indeed, the lack of the credential was the basis Defendant placed Plaintiff on unpaid leave and ultimately terminated her employment. Defendant’s alleged conduct constitutes an adverse employment action. Defendant fails to show the race discrimination claim fails on this ground.

Defendant next argues there is no causal connection between the foregoing act (i.e., noncooperation), the decision to prohibit Plaintiff from working without the requisite credential, and Plaintiff’s race. In support, Defendant submits evidence to establish that it hired Plaintiff knowing she was African American (Defendant’s Separate Statement of Undisputed Material Fact (UMF) 5), the FAC does not contain any allegations of derogatory comments based on her race, color, ethnicity, or national origin (UMF 2), Plaintiff admits that Defendant cooperated with her to facilitate waivers related to her credentials (UMF 19, 20, 28, 30, 31, 33, 34, 43, 45), and Plaintiff was placed on leave because she did not have the requisite credentials (UMF 6, 11, 22, 24-25, 32, 43-53). Defendant meets its initial burden to show there is no causal connection between any action by Defendant and Plaintiff’s race.

The burden shifts. Plaintiff does not meet her burden. Plaintiff points to evidence of the

following: (1) Ms. Schatz, a white principal employed by Defendant, purportedly stated to Plaintiff that if Plaintiff were white, "this probably wouldn't be happening to you"; (2) Defendant stopped assisting Plaintiff after lodging a race discrimination complaint against Defendant's Assistant Superintendent of Human Resources, Dr. Terry Walker; (3) Dr. Walker personally contacted CTC to terminate Plaintiff's pending credential waiver and Defendant's selective enforcement of credentialing requirements against Plaintiff, the only African American principal, despite knowing the waiver issue was curable support an inference of discrimination and pretext.[5]

Plaintiff's reliance on this evidence is misplaced. First, Ms. Schatz's purported statements are hearsay within hearsay. (See Plaintiff's Compendium of Exhibits, Ex. B.) Plaintiff does not establish its admissibility pursuant to any exception and the statements are therefore not considered.

Second, any evidence showing Defendants stopped assisting Plaintiff in the credential waiver process following Plaintiff's race discrimination complaint against Dr. Walker supports a retaliation claim, not a discrimination claim.

And last, as Defendant's demonstrate in its reply, Dr. Walker called CTC to terminate a 30-Day Substitute Variable Term Waiver ("SUB Waiver") for Plaintiff because it learned the SUB Waiver was not the proper waiver to submit. (UMF 31.) On its face, Defendant's conduct does not connect at all to Plaintiff's race.

Further, Plaintiff's reliance on differential treatment as the only African American principal is not a theory that is alleged in the FAC. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. [Citation.]” (FPI Dev., Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 380.) Evidence offered on an unpleaded claim, theory, or defense is irrelevant because it is outside the scope of the pleadings.” (California Bank & Trust v. Lawlor (2013) 222 Cal.App.4th 625, 637, fn. 3.) The court therefore disregards any evidence supporting a disparate treatment theory.

In sum, Plaintiff does not present sufficient evidence to establish a prima facie case of race

discrimination. The first cause of action fails as a matter of law.

b. Retaliation (2nd COA)

The FAC is not a model of clarity. In support of the second cause of action, the FAC alleges, “Government Code 12940(h) precludes an employer from retaliating against an employee because of her race, color/ethnicity and/or national origin.” (FAC, ¶ 31.) “The foregoing retaliating conduct was not consented to, was based on Plaintiff’s race, color, ethnicity and/or national origin.” (FAC, ¶ 32.) “The Employer Defendants are strictly liable for this retaliation because Dr. Walker was a supervisor or manager as defined by the FEHA, employed by the Employer Defendants, and Plaintiff’s direct supervisor.” (FAC, ¶ 33.) However, the FAC does not identify the retaliating conduct to which Plaintiff did not consent, does not identify any protected activity Plaintiff engaged in, nor does the FAC incorporate any of the preceding allegations to support the retaliation claim. (See FAC, ¶¶ 31-37.) Rather, as framed by the FAC, Defendant retaliated against her because of her race.

Given that a retaliation claim requires a protected activity, Plaintiff’s retaliation claim does not make sense. Moreover, as discussed above, Plaintiff failed to show Defendant undertook any action against Plaintiff because of her race.

Nevertheless, Defendant identifies one protected activity alleged in the FAC: Plaintiff’s complaint of discrimination and harassment. (FAC, ¶ 13.) Thus, the court reads the allegations of the FAC as tethering this protected activity to Defendant’s alleged failure to cooperate with facilitating a credential waiver.

i.

Prima Facie Case

The retaliation provision of FEHA “makes it an unlawful employment practice ‘[f]or any employer ... to discharge, expel, or otherwise discriminate against any person ... because the person has filed a complaint, testified, or assisted in any proceeding under [FEHA].’ [Citation.]” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042, italics removed (discussing Gov. Code, § 12940, subd. (h)).)

Like FEHA discrimination claims, FEHA retaliation claims

are subject to the McDonnell Douglas burden-shifting analysis. (Batarse v. Service Employees Internat. Union, Local 1000 (2012) 209 Cal.App.4th 820, 831.) To establish a prima facie case of retaliation, a plaintiff must show that: (1) plaintiff engaged in protected activity; (2) the employer subjected the plaintiff to an adverse employment action; and (3) the protected activity and the employer's action were causally connected. (Yanowitz, 36 Cal.4th at p. 1042.)

Defendant attacks Plaintiff's prima facie case for retaliation. Defendant argues its alleged failure to cooperate with facilitating the credential waiver is contradicted by the evidence.[6] Accordingly, Plaintiff cannot establish a causal link between her protected activity and Defendant's adverse employment action. Based upon the court's review of the parties' filings, the court constructs the following timeline.

1. In June 2022, Defendant coordinated with the Los Angeles County Office of Education ("LACOE") to facilitate a waiver for Plaintiff's Teaching Credential because she had not satisfied her math Basic Skills Requirement ("BSR"). (UMF 20.)

2. In July 2022, Defendant offered Plaintiff the principalship of Daisy Gibson Elementary School ("Daisy") for the 2022-2023 school year. (UMF 21.) The position required a valid Teaching and Administrative Services Credentials. (UMF 22.) At this time, Plaintiff held a one-year Nonrenewable Administrative Credential that was valid from July 9, 2021 to August 1, 2022.

3. In July 2022, Defendant submitted Plaintiff's Teaching and Administrative Credentials to LACOE related to her being hired as Daisy's principal and continued to coordinate with LACOE to facilitate a waiver for Plaintiff's Teaching Credential because she had not satisfied her math BSR in July 2022. (UMF 27, 28.)

4. On July 25, 2022, Defendant submitted a Temporary County Certificate ("TCC") to LACOE and a SUB Waiver to CTC related to Plaintiff's

Teaching Credential. The TCC and SUB Waiver were backdated to June 1, 2022. (UMF 29.)

5. Presumably around this time, LACOE provided Plaintiff an extension for her Teaching Credential until December 1, 2022, to allow her to satisfy her math BSR. (UMF 30.)

6. On October 19, 2022, CTC informed Defendant that the SUB Waiver was the incorrect form. (UMF 31; Plaintiff's Response to UMF 31.)

7. On October 31, 2022, Defendant contacted CTC to identify the proper waiver to submit. (UMF 31.)

6. On November 8, 2022, the CTC advised Defendant (1) to complete a Variable Term Waiver Request ("WV1") and (2) Plaintiff's Administrative Credential could not be renewed until she satisfied her math BSR. (UMF 32.)[7]

7. On November 18, 2022, Defendant submitted WV1s to CTC regarding Plaintiff's Teaching Credential and Administrative Services Credential. (UMF 33; Plaintiff's Response to UMF 33.)

8. On November 18, 2022, Defendant submitted TCCs to LACOE regarding Plaintiff's Teaching Credential and Administrative Services Credential. (UMF 34.)

9. On November 18, 2022, at 5:08 p.m., Plaintiff filed a formal complaint/grievance with Dr. Walker against District employees for slander, libel, and discrimination. (UMF 35.)

10. On November 21, 2022, Dr. Walker acknowledged Plaintiff's formal complaint and informed Plaintiff the District would review it. (UMF 37.)

8. On November 21, 2022, LACOE informed Defendant that it (1) could not issue a TCC for

Plaintiff's Administrative Credential because Plaintiff had not satisfied her math BSR by August 1, 2022, and because her Administrative Credential expired on August 1, 2022; and (2) will grant Plaintiff an extension through January 1, 2023, to satisfy her math BSR. (UMF 43.)

9. On November 28, 2022, Defendant informed Plaintiff in an email that she needed to satisfy her math BSR by January 1, 2023. The email states in pertinent part, "After January 1, 2023 you must have successfully completed your BSR requirement. If you have not successfully completed the math portion by then you will be unable to continue working at KUSD. As a reminder you had been granted an extension from 6/1/22-12/1/2022 with the understanding that you would have met your BSR requirement." (UMF 45.)

10. On November 28, 2022, Plaintiff responds to Defendant's email, in relevant part:

"Ms. Huerta,

I just spoke with LACOE, Janette Reiber, and they informed me of the following:

1. A waiver request has not been requested by KUSD for my Administrative Credential, instead for my teaching credential.
2. A teaching credential is not required when you have an out of state administrative credential.
3. KUSD can request an additional waiver because I have done everything in good faith; I have taken the test and am making progress and the CTC has not denied me the extension.
4. I have not had six months on the admin credential waiver which would give me until Feb 1, 2023, to meet the basic skills requirement.
5. Even after January or February 1, 2023, KUSD can still request an extension from the county as it is not uncommon for the county to grant these extensions year after year.

After talking with LACOE, are you telling me that HR is making the decision to end my employment on January 1, 2023, if I'm not successful on the CBEST: Math course? I was told by Dr. Walker that if I'm not successful on the test, HR would continue to ask for another extension. Why the sudden change? Does it have anything to do with me filing a grievance of hostile work environment and discrimination? Per my contract, I wish to remain employed in my position as Principal of Daisy Gibson Elementary school for the remainder of the school year; as long as the environment is safe and free from discrimination, intimidation, slander, libel, and sabotage."

(Huerta Decl., Ex. P.)

Defendant did not respond to Plaintiff's email.

11. On December 16, 2022, the CTC notified Plaintiff that additional information was needed to complete processing of her waiver application.

(Plaintiff's Ex. 30.)

12. On January 5, 2023, Defendant placed Plaintiff on mandatory unpaid administrative leave because Education Code section 45034 prohibits paying an employee unless the required credential is in full force and Plaintiff did not possess the requisite credentials to work as Daisy's principal.

(UMF 48.)

13. On February 28, 2023, Defendant sent Plaintiff a Notice of Non-Reelection and Release from Employment indicating Plaintiff's employment relationship with the District will be terminated on June 30, 2023. At the time, Plaintiff had not satisfied her math BSR.

(UMF 49, 51.)

14. In March 2023, CTC denied the Defendant's WV1s. (UMF 54.)

Defendant argues the evidence demonstrates that it cooperated with Plaintiff across multiple months to obtain waivers and extensions to Plaintiff's Teaching and Administrative Credentials. However, despite its efforts, Defendant contends Plaintiff did not obtain valid credentials by January 1, 2023 due to Plaintiff's unwillingness, inability, and/or failure to timely satisfy her math

BSR.

The court disagrees. As framed by the FAC, Defendant failed to cooperate with the waiver process after Plaintiff made a formal complaint of discrimination and harassment on November 18, 2022. The timeline tends to support the allegation. After November 18, 2022, the only thing Defendant did with respect to the waiver/credentialing process was relay LACOE's November 21, 2022 communication to Plaintiff on November 28, 2022. (See Timeline, Nos. 8 and 9.) Defendant offers zero evidence to show it made any efforts beyond November 28 to advance Plaintiff's WV1 applications or obtain extensions for Plaintiff to satisfy the BSR. Rather, the record before the court establishes that, in the November 28, 2022 email, Defendant imposed for the first time the requirement that Plaintiff satisfy her math BSR by January 1, 2023. The record also establishes that Plaintiff responded to the November 28 email conveying her understanding in that LACOE could issue another extension upon Defendant's request and further, per discussion with Dr. Walker, HR would continue to ask for extensions until Plaintiff satisfied the BSR. Defendant did not respond to Plaintiff's November 28 email and does not address this argument now. This timing is key. Temporal proximity between a protected activity and adverse employment action may support an inference of retaliation. (*Loggins v. Kaiser Permanente Internat.* (2007) 151 Cal-App.4th 1102, 1110.) Here, ten days separate Plaintiff's formal complaint of discrimination and harassment and Defendant's deadline to complete her math BSR by January 1, 2023.

Without a doubt, Plaintiff establishes there is at least a triable issue on her prima facie case for retaliation. Further, because Defendant's briefing fails to consider its alleged failure to cooperate as an adverse employment action and instead focuses its discussion on the decisions to place Plaintiff on unpaid leave and terminate her employment, Defendant cannot meet its initial burden on summary judgment. Based on the foregoing, the court cannot conclude the retaliation claim fails as a matter of law.

c. Failure to Prevent
Discrimination or Retaliation (3rd COA)

The third cause of action is based on Plaintiff's discrimination and retaliation claims.

(FAC, ¶ 39.) Given the court's ruling on the second cause of action, Defendant's challenge to the third cause of action likewise fails.

d. Violation of
Labor Code section 1102.5

Like the preceding causes of action, Plaintiff's whistleblower claim is based upon Defendant's alleged retaliation against Plaintiff after complaining about discrimination against Dr. Walker. (FAC, ¶¶ 43-46.)

"Section 1102.5 provides whistleblower protections to employees who disclose wrongdoing to authorities." (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 709.)

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Defendant argues the fourth cause of action fails for the same reasons as the third cause of action for FEHA retaliation. The court rejects those arguments for the same reasons discussed above. The fourth cause of action does not fail as a matter of law.

4. Conclusion

The motion for summary adjudication of the first cause of action is GRANTED.

The motion for summary adjudication of the second, third, and fourth causes of action is DENIED.

II. DISCUSSION RE MOTION FOR RELIEF FROM WAIVER OF JURY TRIAL

A. Background

On November 22, 2023, Plaintiff commenced this action. The Complaint requests a jury trial.

On March 29, 2024, Defendant filed an Answer to the Complaint.

On April 10, 2024, the court scheduled a non-jury trial for May 27, 2025.

On January 28, 2025, Plaintiff posted jury fees.

On April 8, 2026, Plaintiff filed this motion for relief from waiver of jury trial.

On June 1, 2026, Defendant filed an opposition.

On June 4, 2026, Plaintiff filed a reply.

B. Legal Standard

Under the California constitution, “[t]rial by jury is an inviolate right and shall be secured by all[.]”¹ Therefore, “[w]here doubt exists concerning the propriety of granting relief from [a jury trial] waiver, this doubt, by reason of the constitutional guarantee of right to jury trial, should be resolved in favor of the party requesting trial by jury.”² (Gann v. Williams Brothers Realty, Inc. (1991) 231 Cal.App.3d 1698, 1703-1704.)³ The court may, in its discretion upon just terms, allow a trial by jury despite the waiver.⁴ (Code Civ. Proc., § 631, subd. (g).)⁵ Where the right to jury is threatened, the crucial focus is whether any prejudice will be suffered by any party or the court if a motion for relief from waiver is granted.⁶ (Tesoro del Valle Master Homeowners Ass’n v. Griffin (2011) 200 Cal.App.4th 619, 638-39.)⁷ “A trial court abuses its discretion as a matter of law when ‘. . . relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver. [Citations.]’”⁸ (Wharton v. Superior Court (1991) 231 Cal.App.3d 100, 104.)⁹

C. Application

There is no dispute Plaintiff waived her right to a jury trial by failing to deposit jury fees within a year of the filing of the Complaint. The jury fee shall be due no later than 365 calendar days after the filing of the initial complaint. (Code Civ. Proc., § 631(c)(2).) The failure to deposit the fees waives the party's right to a jury trial. (Code Civ. Proc., § 631(f)(5).) Plaintiff seeks relief from this waiver on the grounds it was inadvertent, jury fees have been paid, and Defendant is not prejudiced.

Defendant disputes the waiver was inadvertent and the absence of prejudice. Defendant argues that Plaintiff does not submit any evidence to establish the waiver was the result of inadvertence, mistake, and/or excusable neglect. Defendant also points out that Plaintiff waited over 400 days after posting jury fees to seek relief from the waiver. Further, proceeding with a jury trial would increase trial time and likely result in another trial delay.

The court will exercise its discretion to grant relief from waiver. Each of Plaintiff's pleadings indicate her intention to proceed with a jury trial. Further, Plaintiff has posted jury fees. Defendant's claimed prejudice is speculative and ultimately, does not carry the day.

D. Conclusion

The motion for relief from waiver of jury trial is GRANTED.

III. DISPOSITIONS

1.

The motion to strike is Granted in Part. With the exception of the exhibits identified in Plaintiff's exhibit list filed late on May 29, 2026, the court disregards Plaintiff's June 5 Filings and June 8 Filing. Defendant to give notice, unless waived.

2.

The motion for summary adjudication of the first cause of action is Granted. The motion for summary adjudication of the second, third, and fourth causes of action is Denied. Defendant to give notice, unless waived.

3.

The motion for relief from waiver of jury trial is Granted. Plaintiff to give notice, unless waived.

Dated: June 26, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Plaintiff's exhibit list, which was not timely filed, does not comply with the Courtroom Information for this department. It spans nearly 1,000 pages and is not tabbed. Plaintiff's non-compliance burdens the court's resources. The court also notes the exhibit list identifies documents that have been omitted. This issue is discussed in more detail at Section I.B. of this ruling. Plaintiff's counsel is admonished to observe the court's Courtroom Information, as well as all applicable laws and rules.

[2] The June 8 Filing was filed after Defendant filed its motion to strike.

[3] Defendant argues the court should disregard the opposition because it was not timely filed. Given that the court granted Defendant's ex parte application shortening time for hearing on the motion to strike, which shortened the notice period for Plaintiff to file an opposition, the court will consider Plaintiff's opposition to the motion to strike.

[4] The court considers this evidence and addresses it in connection to the MSJ at Section I.C.3. of this ruling.

[5] Some of this evidence is presented in response to Defendant's non-discriminatory reason for unpaid leave and termination. The court views this evidence as pertinent to Plaintiff's prima facie case and thus addresses it together.

[6] Defendant maintains that the only adverse employment action is Defendant's decision not to allow Plaintiff to continue working without the requisite credentials. However, because the court has found that the failure to facilitate the waiver process also constituted an adverse employment action, the court focuses its discussion on this act.

[7] In response to UMF 32, Plaintiff noted

UMF 32 is based upon Defendant's Exhibit I, which is an incomplete document. Exhibit I is only one page of a four-page email thread between Defendant and the CTC. Plaintiff points out this issue because, according to Plaintiff, the omitted portions of CTC's November 8 email confirm that a valid credentialing pathway remained.

The argument is not well taken for two reasons. First and foremost, Plaintiff cites Exhibit 21 of her Exhibit List, which is purportedly the complete November 8 email, but failed to include Exhibit 21. Then, as it appears to the court, Plaintiff inexplicably renumbered Exhibit 21 as Exhibit 22 in her Second Exhibit List. Plaintiff did not apprise the court how this or other exhibits were to be renumbered. Second, and critically, Plaintiff's Exhibit 22 reveals that Defendant's Exhibit I includes the pertinent portion of CTC's November 8 email. (Compare Defendant's Exhibit I with Plaintiff's Exhibit 22 of Second Exhibit List.)

In other words, Defendant did not omit any relevant information from Exhibit I.